

- (a) the duties of a railway administration and the commissioner in regard to the opening of a railway for the public carriage of passengers;
- (b) the arrangements to be made for and the formalities to be complied with before opening a railway for the public carriage of passengers;
- (c) for regulating the manner in which, and the speed at which rolling stock used on railway is to be moved or propelled; and
- (d) the case in which and the extent to which the procedure provided in this Chapter may be dispensed with.

Comments.

Section 29 provides inter alia that the Central Government, before opening a railway for the public carriage of passengers may make rules in respect of the duties of railway administration and the Commissioner, the arrangements to be made and the formalities to be observed before such opening of railway.

Rules – Whether validity framed. – The question whether rules are validity framed to carry out the purposes of the Act can be determined on the analysis of the provisions of the Act.

CHAPTER VI

Fixation of Rates

30.Power to fix rates.- (1) The Central Government may, from time to time, by general or special order fix, for the carriage of passengers and goods, rates for the whole or any part of the railway and different rates may be fixed for different classes of goods and specify in such order the conditions subject to which such rates shall apply.

(2) The Central Government may by a like order, fix the rates of any other charges identical to or connected with such carriage including demurrage and wharfage for the whole or any part of the railway and specify in the order the conditions subject to which such rates shall apply.

Comments

Section 30 sub-rule (1) empowers the Central Government to fix rates for the carriage of passengers and goods and specify the conditions subject to which such rates shall apply.

Sub-rule (2) empowers the Central Government to fix rates or other charges including demurrage and wharfage and the conditions subject to which such rates or charges shall apply.

31. Power to classify commodities or alter rates. – The Central Government shall have power to-

- (a) classify or reclassify any commodity for the purpose of determining the rates to be charged for the carriage of such commodities; and
- (b) increase or reduce the class rates and other charges.

Comment

Section 31 empowers the Central Government to classify commodities and alter rates therefore.

32. Power of railway administration to charge certain rates,- Notwithstanding anything continues in this Chapter, a railway administration may, in respect of the carriage of any commodity and subject to such conditions as may be specified,-

- (a) quote a station to station rate;
- (b) increase or reduce or cancel, after due notice in the manner determined by the Central Government, a station to station rate, not being a station to station rate introduced in compliance with an order made by the Tribunal;
- (c) Withdraw, alter or amend the conditions attached to a station to station rate other than conditions introduced in compliance with an order made by the Tribunal; and
- (d) Charge any lump sum rate.

Comment

Section 32 empowers a railway administration to charge station to station rate, increase, reduce or cancel such rates and withdraw, alter or amend the conditions attached to such rate and to charge any lump-sum rate.

CHAPTER VII

Railway Rates Tribunal